

#	Case Name	Tentative
1	Caminos vs. Mercedes-Benz USA, LLC 2025-01502571	Motion for Judgment on the Pleadings Defendant Fletcher Jones Motor Cars dba Fletcher Jones Motocars of Newport Beach’s motion for judgment on the pleadings is GRANTED, with 10 days leave to amend. (See Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The allegations of the complaint do not affirmatively or conclusively show that the third cause of action for negligent repair is barred by the economic loss rule. The economic loss rule has two branches. First, it provides that there is no general duty to avoid the infliction of economic losses, meaning there can be no negligence claim for such losses (no duty, no negligence). (<i>Sheen v. Wells Fargo Bank, N.A.</i> (2022) 12 Cal.5th 905, 922.) This “no general duty” rule does not apply here because the Song-Beverly Act specifically imposes a statutory duty on those who service or repair consumer goods to do so in a “good and workmanlike manner, which establishes the existence of the alleged duty of care as a matter of law. (Civ. Code, § 1796.5; see Compl. ¶¶ 50-51.) As for the second branch, it provides that where the parties have a pre-existing contractual relationship, their obligations and potential recovery are defined by the terms of the contract under contract law, rather than tort law. (<i>Sheen</i>, at pp. 922-924.) But this latter branch assumes and requires the existence of a contract between the parties (<i>id.</i> at pp. 922-923; <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 20-21, 26, 36, 43, 44 & fns. 11, 13), and the complaint does not allege the existence of any such contract or warranty between plaintiff Daniel Edwin Caminos and Fletcher Jones at any time. (See, e.g., Compl. ¶¶ 5, 9.) That said, the complaint fails to state facts sufficient to constitute a cause of action for negligent repair. (See <i>Conroy v. Regents of University of California</i> (2009) 45 Cal.4th 1244, 1250 [negligence elements].) While a company “which engages in the business of providing service or repair to new or used consumer goods has a duty to the purchaser to perform those services in a good and workmanlike manner” (Civ. Code, § 1796.5), the complaint does not allege that Fletcher Jones was engaged in such a business. The complaint further fails to allege facts sufficient to establish breach. The only allegation of breach directed at Fletcher Jones consists of a mere conclusion of law, which is insufficient. (See Code Civ. Proc., § 425.10, subd. (a)(1) [a complaint “shall contain” a “statement of the <i>facts</i> constituting the cause of action, in ordinary and concise language”]; <i>Pang v. Beverly Hosp., Inc.</i> (2000) 79 Cal.App.4th 986, 989 [on a motion for judgment on the pleadings, all properly pleaded material facts are deemed true, “but not

		contentions, deductions, or conclusions of fact or law”]; see also Compl. ¶ 52 [legal conclusion]; <i>id.</i> ¶¶ 12-15, 28-29 [discussing repairs at unidentified repair facility(ies)].) Defendant shall give notice.
2	Dominguez vs. Ted Jones Ford, Inc. 2023-01306689	Motion for Attorney Fees Plaintiff Kelvin Dominquez’s Motion for Attorney Fees is GRANTED in part. <u>Prevailing Party:</u> Attorney’s fees are authorized by contract, statute, or law. (See C.C.P. section 1033.5(a)(10)(A),(B) & (C).) The Song-Beverly Act, popularly known as the automobile “lemon law,” authorizes fees “reasonably incurred by the buyer”. Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Plaintiff accepted Defendant Ford’s Offer to Plaintiff to Compromise pursuant to Code of Civil Procedure section 998. (Kirnos Decl. ¶ 33, Ex. C) Pursuant to the 998 offer Ford agreed that Plaintiff was the prevailing party and entitled to attorneys’ fees, costs, and expenses pursuant to the Song-Beverly Act. (<i>Ibid.</i>) Therefore, Plaintiff is the prevailing party entitled to attorney fees. <u>Amount of Attorneys’ Fees:</u> “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) “The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (<i>Ibid.</i> (citation omitted).) “As the plain wording of section 1794, subdivision (d) makes clear, the trial court is to base the fee award upon actual time